

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-_____

AMENDED COMPLAINT UNDER SECTION 337 OF THE TARIFF ACT OF 1930

COMPLAINANTS:

Samsung Electronics Co., Ltd.
129 Samsung ro (Maetan-dong)
Yeongtong-gu Suwon-si
Gyeonggi-do 16677 Korea
Telephone: 82 2 2255 0114

Samsung Electronics America, Inc.
700 Sylvan Avenue
Englewood Cliffs, New Jersey 07632
Telephone: (201) 229-4000

PROPOSED RESPONDENTS:

Ouraring, Inc.
222 Kearny Street
San Francisco, California 94108
Telephone: (415) 704-9110

Ōura Health Oy
Elektroniikkatie 10, 90590
Oulu, Finland Telephone:
(415) 704-9110

COUNSEL FOR COMPLAINANTS:

D. Sean Trainor
O'MELVENY & MYERS LLP
1625 Eye Street, NW
Washington, D.C. 20006-4061
Telephone: (202) 383-5300
dstrainor@omm.com

Ryan K. Yagura
Nicholas Whilt
Nancy L. Schroeder
O'MELVENY & MYERS LLP
400 South Hope Street
18th Floor
Los Angeles, California 90071-2899
Telephone: (213) 430-6000

Marc J. Pensabene
Laura B. Gore

O'MELVENY & MYERS LLP
1301 Avenue of the Americas
Suite 1700
New York, New York 10019-6022
Telephone: (212) 326-2000

Darin Snyder
Mark Liang
Bill Trac
O'MELVENY & MYERS LLP
Two Embarcadero Center
28th Floor
San Francisco, California 94111-3823
Telephone: (415) 984-8700

Frances Mackay
O'MELVENY & MYERS LLP
2801 North Harwood Street
Suite 1600
Dallas, Texas 75201-2692
Telephone: (972) 360-1900

TABLE OF CONTENTS

I.	INTRODUCTION.....	1
II.	COMPLAINANTS.....	2
III.	PROPOSED RESPONDENTS.....	3
IV.	THE TECHNOLOGY AND PRODUCTS AT ISSUE.....	4
V.	THE ASSERTED PATENTS AND A NONTECHNICAL DESCRIPTION OF THE INVENTIONS.....	4
A.	The '359 Patent.....	4
B.	The '677 Patent.....	5
C.	The '675 Patent.....	6
D.	The '789 Patent.....	7
VI.	RESPONDENTS' UNLAWFUL AND UNFAIR ACTS.....	7
VII.	SPECIFIC INSTANCES OF UNFAIR IMPORTATION.....	9
VIII.	CLASSIFICATION OF THE INFRINGING PRODUCTS UNDER THE HARMONIZED TARIFF SCHEDULE.....	10
IX.	RELATED LITIGATION.....	10
X.	THE DOMESTIC INDUSTRY.....	11
A.	Articles that Practice the Asserted Patents (Technical Prong).....	12
B.	United States Economic Activities Relating to the Domestic Industry Products (Economic Prong).....	13
XI.	RELIEF REQUESTED.....	13

EXHIBITS

Exhibit	Description
1	Certified Copy of U.S. Patent No. 10,642,359
2	Certified Copy of U.S. Patent No. 10,945,677
3	Certified Copy of U.S. Patent No. 10,231,675
4	Uncertified Copy of U.S. Patent No. 10,978,789
5	Certified Copy of Assignment of U.S. Patent No. 10,642,359
6	Certified Copy of Assignment of U.S. Patent No. 10,945,677
7	Certified Copy of Assignment of U.S. Patent No. 10,231,675
8	Uncertified Copy of Assignment of U.S. Patent No. 10,978,789
9	List of Foreign Counterparts to the Asserted Patents
10C	CONFIDENTIAL List of Licensees to the Asserted Patents
11C	CONFIDENTIAL Declaration of Christopher Martinez
12	Samsung 2024 Annual Report
13	Infringement Claim Charts for U.S. Patent No. 10,642,359
14	Infringement Claim Charts for U.S. Patent No. 10,945,677
15	Infringement Claim Charts for U.S. Patent No. 10,231,675
16	Infringement Claim Charts for U.S. Patent No. 10,978,789
17	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,642,359
18	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,945,677
19	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,231,675
20	Documents Cited in Infringement Claim Charts for U.S. Patent No. 10,978,789
21	Oura Website – Product Safety & Use (https://support.ouraring.com/hc/en-us/articles/360025428394-Product-Saf
22	Oura Website - Shipping FAQs (https://support.ouraring.com/hc/en-us/articles/360025439494-Shipping-
23	Invoice of Accused Product Purchase
24	Photograph of Accused Product Made in Mexico and shipped to the United States
25C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,642,359
26C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,945,677
27C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,231,675
28C	CONFIDENTIAL Technical Domestic Industry Claim Charts for U.S. Patent No. 10,978,789
29	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,642,359
30	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,945,677

31	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,231,675
32	Documents Cited in Technical Domestic Industry Claim Charts for U.S. Patent No. 10,978,789
33	Physical Sample of Domestic Industry Product
34	Physical Sample of Accused Product

APPENDICES

Appendix	Description
A	Certified copy of prosecution history of U.S. Patent No. 10,642,359
B	Certified copy of prosecution history of U.S. Patent No. 10,945,677
C	Certified copy of prosecution history of U.S. Patent No. 10,231,675
D	Uncertified copy of prosecution history of U.S. Patent No. 10,978,789

I. INTRODUCTION

1. The Complaint is filed by Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung” or “Complainants”) under Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 (“Section 337”), based on the unlawful importation into the United States, the sale for importation into the United States, and the sale within the United States after importation, by the proposed Respondents of certain wearable devices that infringe the following claims of U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675 and 10,978,789 (collectively, the “Asserted Patents”) either literally or under the doctrine of equivalents (independent claims in bold):

Patent Number	Asserted Claims
10,642,359	1-2, 4, 7-8, 10, 14-15, 20
10,945,677	1-7, 9-14, 16-20
10,231,675	13-19, 20
10,978,789	7, 8-10

2. SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is the second largest provider by volume of wearables and smartphones in the United States. Confidential Exhibit 11 (Martinez Decl.) at ¶ 2.

3. The proposed Respondents Ouraring, Inc. and Ėura Health Oy (collectively, “Oura” or “Respondents”) manufacture, import, sell for importation, sell after importation, service, and repair, among other things, certain wearable devices, such as smart rings (the “Accused Products”). The Accused Products incorporate, without license, many technologies developed by Samsung and protected by patents issued to and owned by SEC.

4. Copies of the Asserted Patents are included as Exhibits 1-4. A list of foreign counterparts to the Asserted Patents is included as Exhibit 9. SEC owns all rights, titles, and

interest in each of the Asserted Patents. Copies of the assignment records for each of the Asserted Patents are included at Exhibits 5-8.

5. Pursuant to Commission Rule 210.12(a)(9)(iii), Confidential Exhibit 10 identifies all licensees to the Asserted Patents. Samsung is not relying upon any licensee to establish standing or to satisfy the domestic industry requirement.

6. A domestic industry as required by 19 U.S.C. §§ 1337(a)(2) and (3) exists in the United States relating to the technology protected by the Asserted Patents, including substantial investment and expenditures of SEA and its partners, and substantial investment in the exploitation of the inventions claimed in the Asserted Patents, including through engineering, research and development, and service and repair.

7. Samsung seeks as relief a permanent limited exclusion order under 19 U.S.C. § 1337(d) barring from entry into the United States directly infringing or indirectly infringing wearable devices manufactured or sold by or on behalf of Respondents. Samsung further seeks as relief a permanent cease and desist order under 19 U.S.C. § 1337(f) prohibiting Respondents from marketing, distributing, selling, offering for sale, warehousing inventory for distribution, or otherwise transferring or bringing into the United States infringing wearable devices.

II. COMPLAINANTS

8. Complainant Samsung Electronics Co., Ltd. is a corporation organized and existing under the laws of the country of Korea, having its principal place of business at 129 Samsung ro, Maetan-dong, Yeongtong-gu Suwon-si, Gyeonggi-do 16677 Korea. SEC is the assignee of the Samsung patents with the right to sue for all past, present, and future infringement thereof.

9. Complainant Samsung Electronics America, Inc. is a corporation organized and existing under the laws of the state of New York, having its principal place of business at 700 Sylvan Avenue, Englewood Cliffs, New Jersey 07632. SEA is a wholly-owned subsidiary of SEC.

10. Samsung is one of the world's leading electronics companies, specializing in wireless communications, digital appliances and media, semiconductors, memory, and system integration. Founded in 1969, SEC has grown to become a world leader in the design, manufacture, and marketing of a wide variety of electronic products. SEC is one of the largest manufacturers of wearable devices in the world and has long focused on the United States as a critical market for its products. SEC established SEA to engage in activities in the United States related to certain of Samsung's product lines.

11. SEA supplies mobile products and services, wearables, and consumer electronics products and services in the United States market. In doing so, SEA is involved in numerous development and commercialization activities, including engineering, research, development, testing, customer service, importation, sales, marketing, and distribution of products in the United States, including wearables and smartphones.

12. SEC is one of the largest providers by volume of wearables and smartphones in the world, and SEA is the second largest provider by volume of wearables and smartphones in the United States. Additional information concerning Samsung can be obtained from its 2024 Annual Report at Exhibit 12.

III. PROPOSED RESPONDENTS

13. On information and belief, Respondent Ouraring, Inc. is a Delaware corporation with its principal place of business at 222 Kearny Street, San Francisco, California 94108.

14. On information and belief, Respondent Ōura Health Oy is a Finnish company with its principal place of business at Elektroniikkatie 10, 90590, Oulu, Finland.

15. On information and belief, Ouraring, Inc. is a wholly-owned subsidiary of Ōura Health Oy, which was founded in Finland in 2013. Ōura Health Oy was formerly known as JouZen Oy. JouZen Oy was subsequently changed to Ōura Health Oy in 2017.

IV. THE TECHNOLOGY AND PRODUCTS AT ISSUE

16. Pursuant to Commission Rule 210.12(a)(12) and 210.10(b)(1), the technology at issue relates to smart rings having biosensing capabilities.

17. The Accused Products are wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic devices for detecting biometric information. The Accused Products include, but are not limited to, Respondents' Oura Ring products. The Accused Products are sold for importation into, imported into, sold after importation into, and used within the United States by or on behalf of Respondents.

V. THE ASSERTED PATENTS AND A NONTECHNICAL DESCRIPTION OF THE INVENTIONS

18. SEC owns by assignment the full right, title and interest in U.S. Patent Nos. 10,642,359, 10,945,677, 10,231,675, and 10,978,789. *See* Exhibits 5-8. Pursuant to Commission Rule 210.12(c), copies of the prosecution histories of each of the Asserted Patents have been submitted with this complaint as Appendices A–D. Samsung has not declared the Asserted Patents as potentially essential to any standard maintained by a standard setting organization.

A. The '359 Patent¹

19. United States Patent No. 10,642,359, entitled "Wearable Biosignal Interface and Method Thereof," issued on May 5, 2020, to inventors Chang Mok Choi, Sang Joon Kim, and Seung Keun Yoon. The '359 patent issued from 16/267,752, filed on February 5, 2019, which was a continuation application of U.S. Patent App. Ser. No. 14/913,085, filed on February 19, 2016, which is a U.S. National Stage Application of International Application No. PCT/KR2014/004073,

¹ These descriptions and any other non-technical descriptions within this Complaint are for illustrative purposes only. Nothing contained within this Complaint is intended to, either implicitly or explicitly, express any position regarding the proper construction of any claim of the Asserted Patents.

filed on May 8, 2014. *See* '359 patent at 1:7-11. The '359 patent claims priority to Korean Patent App. No. 10-2013-0098476, filed on August 20, 2013. *See id.* at 1:11-13. The '359 patent expires on May 8, 2034.

20. The '359 patent contains 34 claims, including 4 independent claims and 30 dependent claims. Complainants assert that Respondents' wearable devices infringe claims 1-2, 4, 7-8, 10, 14-15, and 20 of the '359 patent.

21. The '359 patent generally concerns a wearable biosignal interface and an operation method thereof that allows for improved recognition of user intention. The '359 patent describes a wearable biosignal interface that includes a "a motion sensor configured to obtain a first signal based on a motion of a target, a biosignal sensor disposed on the target and configured to obtain a second signal from the target, and a determination controller configured to determine a validity of the second signal based on the first signal." '359 patent at 1:49–55. The second signal "may include biological information obtained by one or more biosensor in contact with skin of the target." *Id.* at 1:56–58.

B. The '677 Patent

22. United States Patent No. 10,945,677, entitled "Method for Detecting Biometric Information and Electronic Device Using Same," issued on March 16, 2021, to inventors Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi. The '677 patent issued from U.S. Patent App. Ser. No. 16/256,497, filed on January 24, 2019, which was a continuation application of U.S. Patent App. Ser. No. 15/173,099, filed on June 3, 2016, which was issued as U.S. Pat. No. 10,231,675 on March 19, 2019. *See* '677 patent at 1:8-10. The '677 patent claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. *See id.* at 1:11-13. The '677 patent expires on August 23, 2036.

23. The '677 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Complainants assert that Respondents' wearable devices infringe claims 1-7, 9-14, and 16-20 of the '677 patent.

24. The '677 patent generally concerns a wearable electronic device for detecting biometric information. The '677 patent describes "an electronic device and a method that can selectively operate a biometric sensor based on a selected (or specified) condition[,],... continually... operate a biometric sensor according to a selected (or specified) period[, and]... measure biometric information based on the motion of the electronic device." '677 patent at 1:62– 2:5.

C. The '675 Patent

25. U.S. Patent No. 10,231,675, entitled "Method for Detecting Biometric Information and Electronic Device Using Same," issued March 19, 2019, to inventors Gihung Chung, Jooman Han, So Hyun Chung, Dae-Yong Lee, Hongsig Kim, Hyunwoo Jang, Cheolho Cheong, Jae-Woong Chun, and Won Suk Choi. The '675 patent issued from U.S. Patent App. Ser. No. 15/173,099, filed on June 3, 2016. The '675 patent claims priority to Korean Patent App. No. 10-2015-0113972, filed on August 12, 2015. *See* '675 patent at 1:8-12. The '675 patent expires on January 6, 2037.

26. The '675 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Complainants assert that Respondents' wearable devices infringe claims 13-20 of the '675 patent.

27. The '675 patent generally concerns a wearable electronic device for detecting biometric information. The '675 patent describes "an electronic device" and "method of measuring biometric information by an electronic device" comprising "determining whether the electronic device is worn on a part of a user's body using at least one first sensor, activating (operating or

triggering) at least one second sensor based on at least a part of the a motion of the electronic device,” “and measuring biometric information based on the at least one second sensor.” ’675 patent at 2:4–36 .

D. The ’789 Patent

28. United States Patent No. 10,978,789, entitled “Electronic Device Including High-Frequency Transmission Circuit,” issued on April 13, 2021, to inventors Han-Min Cho, Chan-Gi Park, Yeon-Sang Yun, Tae-Wook Ham, Hei-Seong Kwak, Byoung-Il Son, and Sung-Chul Park. The ’789 patent issued from U.S. Patent App. Ser. No. 16/939,708, filed on July 27, 2020, which was a continuation application of U.S. Patent App. Ser. No. 15/621,687, filed on June 13, 2017. *See* ’789 patent at 1:7–9. The ’789 patent claims priority to Korean Patent App. No. 10-20160073355, filed on June 13, 2016. *See id.* at 1:9–12. The ’789 patent expires on June 13, 2037.

29. The ’789 patent contains 20 claims, including 3 independent claims and 17 dependent claims. Complainants assert that Respondents’ wearable devices infringe claims 7 and 8-10 of the ’789 patent.

30. The ’789 patent generally concerns an electronic device containing a high-frequency transmission circuit and “a transmission line capable of effectively transmitting a noiseless high-frequency signal in a narrow space without affecting other modules.” *Id.* at 1:19–23. The electronic device includes “a first [printed circuit board (‘PCB’)]; a second PCB connected to the first PCB through a connector and including at least one [flexible PCB (‘FPCB’)] and at least one rigid PCB that are integrated with each other.” *Id.* at 2:25–29.

VI. RESPONDENTS’ UNLAWFUL AND UNFAIR ACTS

31. Respondents have engaged in unlawful and unfair acts, including the sale for importation into the United States, importation into the United States, and/or sale within the United

States after importation of the Accused Products that directly infringe one or more of the following Asserted Claims of the Asserted Patents (independent claims in bold):

Patent Number	Asserted Claims
10,642,359	1-2 , 4, 7-8 , 10, 14-15 , 20
10,945,677	1-7 , 9-14 , 16-20
10,231,675	13-20
10,978,789	7 , 8-10

32. On information and belief, Respondents also intend and actively induce their customers, distributors, and/or end users of the Accused Products to directly infringe at least one of the Asserted Claims of the '359, '677, '675, and '789 patents at least by providing instructions explaining how to use the Accused Products after importation into the United States and encouraging their use in that manner, as well as doing so through their website at <https://support.ouraring.com/hc/en-us/articles/360025428394-Product-Safety-Use>. See Exhibit 21 (last accessed December 12, 2025). On information and belief, Respondents have been aware of the '359, '677, '675, and '789 patents or have acted with willful blindness to their existence at least as of the filing of this Complaint.

33. Respondents also contributorily infringe at least one of the Asserted Claims of the '359, '677, '675, and '789 patents. Specifically, Respondents contribute to the infringement by their customers, distributors, and/or end users as they have known since at least the filing of this Complaint that the Accused Products are especially made or especially adapted for use in infringing at least one of the Asserted Claims of the '359, '677, '675, and '789 patents. Additionally, the Accused Products are not staple articles or commodities of commerce suitable for substantial non-infringing use.

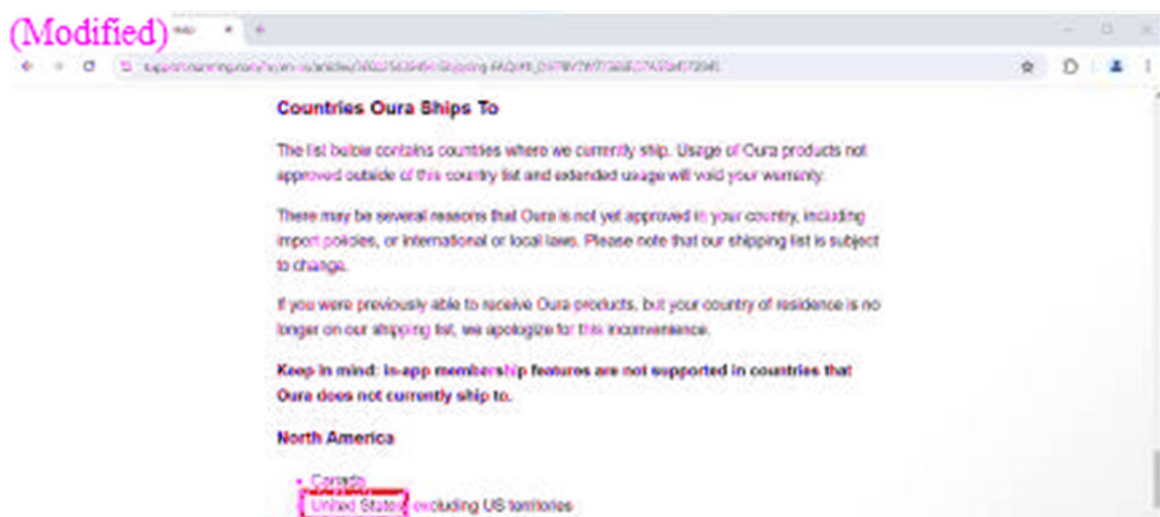
34. A physical sample of the Accused Product is marked as Exhibit 34 and is being made available in accordance with Commission procedures and rules.

35. Exemplary claim charts comparing the '359, '677, '675, and '789 patents' independent Asserted Claims to Respondents' Accused Product are attached as Exhibits 13-16. Copies of documents cited in the claim charts are attached as Exhibits 17-20.

VII. SPECIFIC INSTANCES OF UNFAIR IMPORTATION

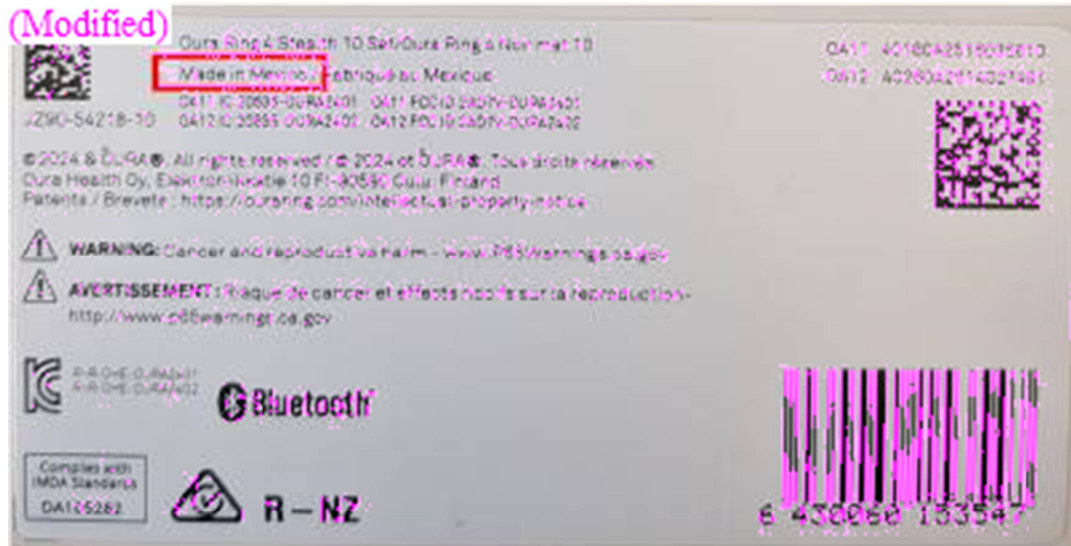
36. On information and belief, Respondents, either themselves or through subsidiaries or third parties acting on behalf of Respondents, are engaged in the manufacture, importation, sale for importation, offer for sale after importation, sale and/or use after importation into the United States of the Accused Products. The specific instances set forth below are representative examples of Respondents' unlawful manufacture, importation, sale for importation, offer for sale after importation, sale and/or use after importation into the United States of infringing products.

37. On information and belief, Respondents' Accused Products are manufactured in Mexico and then imported into the United States. Respondents sell and offer for sale the Accused Products directly to customers in the United States, including through its website (<https://ouraring.com>), which advertises that Oura will ship the Accused Products to the United States (Exhibit 22):



38. Before filing this Complaint, a representative Accused Product was purchased on November 2, 2025, in the United States. A copy of the invoice of this purchase is attached as Exhibit 23.

39. The Accused Product includes a label on the package indicating that the product was “Made in Mexico” (Exhibit 24):



VIII. CLASSIFICATION OF THE INFRINGING PRODUCTS UNDER THE HARMONIZED TARIFF SCHEDULE

40. On information and belief, the Accused Products fall within at least the following classification of the Harmonized Tariff Schedule (“HTS”) of the United States: 9031.80.8085. The identified HTS number is intended to be for illustration only and is not exhaustive of the products accused of infringement in this Complaint. The HTS number is not intended to limit the scope of the Investigation.

IX. RELATED LITIGATION

41. On May 30, 2024, Complainant SEC filed suit against Respondents in the United States District Court for the Northern District of California, Case No. 3:24-cv-03245, seeking

declaratory judgment of non-infringement as to the following patents owned by Oura: U.S. Patent Nos. 10,842,429; 11,868,178; 11,868,179; 10,893,833; and 11,599,147 .

42. On October 23, 2025, Respondent Ouraring Inc. filed suit against SEA in the United States District Court for the Eastern District of Texas, Case No. 2:25-cv-01064, asserting infringement on U.S. Patent Nos. 11,868,178; 12,353,244; 12,346,159; 12,393,227; 12,346,160; 12,422,889; 12,429,909; and 12,222,759.

43. On November 18, 2025, Respondent Ouraring Inc. requested the United States International Trade Commission to institute an investigation into violations of Section 337 against SEC and SEA; Reebok International Limited, RILUK IPCO Limited, The Original Fit Factory Ltd, Truconnect Ltd, and Reebok International Ltd., LLC (together, “Reebok”); Zepp Health Corporation, Anhui Huami Information Technology Co., Ltd., Zepp Inc. (d/b/a Zepp Health), and Zepp North America Inc. (together, “Zepp”); and Nexxbase Marketing Pvt. Ltd. (d/b/a Noise and LunaZone) (“Nexxbase”). Oura asserted infringement on U.S. Patent Nos. 11,868,178; 12,353,244; 12,346,159; 12,393,227; 12,346,160; 12,422,889; 12,429,909; and 12,222,759.

44. On December 1, 2025, Complainants filed suit against Respondent Ōura Health Oy in the United States District Court for the Eastern District of Texas, Case No. 2:25-cv-1181 asserting infringement on U.S. Patent Nos. 7,662,065; 9,008,973; 12,260,672; 12,279,849; 12,324,655; and 12,383,152.

X. THE DOMESTIC INDUSTRY

45. A domestic industry in the United States exists with respect to articles protected by the '359, '677, '675, and '789 patents based upon SEA's significant investments in plant and equipment and significant employment of labor and capital in the United States.

A. Articles that Practice the Asserted Patents (Technical Prong)

~~4~~46. Certain Samsung wearable devices and mobile devices (“Domestic Industry Products”) practice at least one claim of the Asserted Patents. A physical sample of the Samsung Domestic Industry Product is marked as Exhibit 33 and is being made available in accordance with Commission procedures and rules.

~~2~~47. Certain Samsung wearable devices, including, for example, the Samsung Galaxy Watch 4, Galaxy Watch 5, Galaxy Watch 6, and Galaxy Watch 7 (collectively, “Galaxy Smartwatches”) and Galaxy Ring, practice at least one claim of the ’359 patent. An exemplary claim chart comparing the Samsung Galaxy Smartwatches to a representative claim of the ’359 patent is attached as Confidential Exhibit 25. Complete copies of documents referenced in the claim chart are attached in Exhibit 29.

~~3~~48. Certain Samsung wearable devices, including, for example, the Samsung Galaxy Smartwatches and Galaxy Ring, practice at least one claim of the ’677 patent. An exemplary claim chart comparing the Samsung Galaxy Smartwatches to a representative claim of the ’677 patent is attached as Confidential Exhibit 26. Complete copies of documents referenced in the claim chart are attached in Exhibit 30.

~~4~~49. Certain Samsung wearable devices, including, for example, the Samsung Galaxy Smartwatches and Galaxy Ring, practice at least one claim of the ’675 patent. An exemplary claim chart comparing the Samsung Galaxy Smartwatches to a representative claim of the ’675 patent is attached as Confidential Exhibit 27. Complete copies of documents referenced in the claim chart are attached in Exhibit 31.

~~5~~50. Certain Samsung mobile devices, including, for example, the Galaxy S25 smartphones, practice at least one claim of the ’789 patent. An exemplary claim chart comparing the Samsung Galaxy S25 smartphones to a representative claim of the ’789 patent is attached as

Confidential Exhibit 28. Complete copies of documents referenced in the claim chart are attached in Exhibit 32.

651. The Domestic Industry Products practice more claims than the claims charted in Confidential Exhibits 25-28 and Complainants may demonstrate satisfaction of the technical prong through other claims of the Asserted Patents.

B. United States Economic Activities Relating to the Domestic Industry Products (Economic Prong)

752. Samsung has an existing domestic industry in '359, '677, '675, and '789 patents. SEA has made significant domestic investments in plant, equipment, labor, and capital as well as substantial domestic investments in engineering and research and development to develop, commercialize, and support its wearable devices and mobile devices. As described in the confidential declaration of Christopher Martinez, SEA employs hundreds of direct employees and contractors, and invests hundreds of millions of dollars in product strategy, management, planning, research, development, engineering, testing, compliance, quality control, technical support, sales, marketing, distribution, warehousing, service, warranty, repair, and replacement for Samsung mobile products in the U.S., including the Galaxy Smartwatches and Galaxy smartphones. *See* Confidential Exhibit 11 (Martinez Decl.) at ¶ 13. Without SEA's significant and substantial investments, SEA would not be able to commercialize and sell the Galaxy Smartwatches and smartphones in the United States. *See id.* at ¶¶ 19, 22, 27, 30, 33, 40, 46.

XI. RELIEF REQUESTED

853. Complainants respectfully request that the Commission:

- a. Institute an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, with respect to Proposed Respondents' violations of that section arising from the importation into the United States, sale for importation, and/or the sale within the

United States after importation of certain wearable devices and components thereof made on behalf of Respondents, that infringe one or more claims of the Asserted Patents;

b. Schedule and conduct a hearing pursuant to Section 337(c) for the purposes of (i) receiving evidence and hearing argument concerning whether there has been a violation of Section 337, and (ii) following the hearing, determining that there has been a violation of Section 337;

c. Issue a permanent limited exclusion order directed to products manufactured by Respondents, their subsidiaries, related companies, and agents pursuant to 19 U.S.C. § 1337(d) excluding entry into the United States of certain wearable devices made by or on behalf of Respondents, that infringe one or more claims of the Asserted Patents;

d. Issue a permanent cease and desist order pursuant to 19 U.S.C. § 1337(f) prohibiting Respondents, their subsidiaries, related companies and agents from conducting any of the following activities in the United States: importing, selling, marketing, advertising, distributing, offering for sale, transferring (except for exportation), soliciting United States agents or distributors, or aiding and abetting other entities in the importation, sale for importation, sale after importation, transfer (except for exportation), or distribution of certain wearable devices made by or on behalf of Respondents, that infringe one or more claims of the Asserted Patents;

e. Impose a bond upon importation of certain wearable devices made by or on behalf of Respondents, that infringe one or more claims of the Asserted Patents during the 60-day review period pursuant to 19 U.S.C. § 1337(j); and

f. Issue other and further relief as the Commission deems just and proper under the law, based on the facts determined by the investigation and the authority of the Commission.

~~Dated: December 12, 2025~~ Dated: January 2, 2026

~~/s/ D. Sean Trainor~~ _____

D. Sean Trainor
O'MELVENY & MYERS
LLP
1625 Eye Street, NW
Washington, D.C.
20006-4061
Telephone: (202) 383-5300
dstrainor@omm.com

Ryan K. Yagura
Nicholas J. Whilt
Nancy L. Schroeder
O'MELVENY & MYERS LLP
400 South Hope Street
18th Floor
Los Angeles, California 90071-2899
Telephone: (213) 430-6000

Marc J. Pensabene
Laura B. Gore
O'MELVENY & MYERS LLP
1301 Avenue of the Americas
Suite 1700
New York, New York 10019-6022
Telephone: (212) 326-2000

Darin Snyder
Mark Liang
Bill Trac
O'MELVENY & MYERS LLP
Two Embarcadero Center
28th Floor
San Francisco, California 94111-3823
Telephone: (415) 984-8700

Frances Mackay
O'MELVENY & MYERS LLP
2801 North Harwood Street
Suite 1600
Dallas, Texas 75201-2692
Telephone: (972) 360-1900

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung
Electronics America, Inc.*